

Chief Justice's Court

Case :- WRIT - C No. - 28591 of 2023

Petitioner :- Mohajjam Khan

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bipin Kumar Rao, Deo Prakash Singh

Counsel for Respondent :- C.S.C, Rishu Mishra

Hon'ble Pritinker Diwaker, Chief Justice

Hon'ble Ashutosh Srivastava, J.

Mrs. Rishu Mishra, learned counsel for the respondent-Electricity Department submits that if the petitioner approaches the Electricity Department by filing appropriate application/objection under Clause 6.8 of the U.P. Electricity Supply Code, 2005 then appropriate orders would be passed considering all the aspects of the case.

The proposition as put forth by the Electricity Department is accepted by the learned counsel for the petitioner and he submits that two weeks time be given to him to file appropriate application/objection. He, however, submits that the Electricity Department may be directed to pass a speaking order within reasonable time.

Without expressing any opinion on the merits of the case, the petition is **disposed of** directing to the petitioner to file an appropriate application/objection under Clause 6.8 of the U.P. Electricity Supply code, 2005 within two weeks from today and in turn the Electricity Department shall decide the same within three weeks after receiving the same.

Order Date :- 23.8.2023

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(Ashutosh Srivastava, J) (Pritinker Diwaker, CJ)